

May 11, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 12589
(THIRD REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of tungsten hexafluoride in certain DOT 3BN specification cylinders that previously contained hydrogen fluoride. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.163 in that the cylinders have been removed from hydrogen fluoride service and put into another service rather than being rendered unfit for any regulated service.
5. BASIS: This special permit is based on the application of Air Products & Chemicals, Inc. dated July 6, 2004, submitted in accordance with § 107.109.

May 11, 20066. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Tungsten hexafluoride	2.3	UN2196	Hazard Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are DOT 3BN specification cylinders that have previously been in hydrogen fluoride service.

b. TESTING -

(1) Prior to being changed to tungsten hexafluoride service, each DOT 3BN specification cylinder must be inspected and tested in accordance with the requirements of § 180.205(e).

(2) Each cylinder must be reinspected and hydrostatically tested at least every five years in accordance with § 180.205(c) as prescribed for DOT 3BN specification cylinders.

c. OPERATIONAL CONTROLS -

(1) Each cylinder must be in conformance with § 173.338.

(2) Each cylinder must be in dedicated tungsten hexafluoride service.

d. MARKING - In addition to the specification markings, each cylinder must be plainly and durably marked "DOT-SP 12589" as specified in § 172.301(c).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - c. Transportation of Division 2.3 (gases which are poisonous by inhalation) is not authorized aboard cargo vessel unless specifically authorized in the Hazardous Materials Table (§ 172.101).
 - d. Packagings permanently marked 'DOT-E 12589', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 12589'.
 - e. Shipping papers displaying 'DOT-E 12589' may continue to be used until October 1, 2007, provided the special permit remains valid.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
 - 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
 - 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

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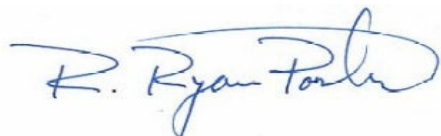
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Porter", is written over a faint circular stamp.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

May 11, 2006

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWF/sln